



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
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Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE INAUGURAL SESSION OF THE 12TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON JULY 7, 2025 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA
Hon. Ryand D. Dino
Hon. Vicente B. Bayoca
Hon. Bienvenido D. Ayo, Jr.
Hon. Joseph H. Yap, Jr.
Hon. Alexander D. Destura
Hon. Jo Madel D. Domalaon
Hon. Juan D. Ebid
Hon. Lilia D. Oliveres
Hon. Antonio J. Emano, Jr.
Hon. Rene Joseph D. Domasian

Municipal Vice Mayor/Presiding Officer
Sangguniang Bayan Member
Sangguniang Bayan Member
Sangguniang Bayan Member
Sangguniang Bayan Member
Sangguniang Bayan Member
Sangguniang Bayan Member
Sangguniang Bayan Member
Sangguniang Bayan Member
LnB Pres./S. B. Member
SKMF Pres./S. B. Member

ABSENT:

None

RESOLUTION NO. 107-2025

Introduced by Hon. Alexander Destura

A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN TO ENTER INTO A DATA TURNOVER AGREEMENT WITH THE PHILIPPINE STATISTICS AUTHORITY (PSA) REPRESENTED BY MR. CLAIRE DENNIS S. MAPA, UNDERSECRETARY, NATIONAL STATISTICIAN AND CIVIL REGISTRAR GENERAL, FOR THE TURNOVER OF THE 2024 COMMUNITY-BASED MONITORING SYSTEM (CBMS) DATA TO THE LOCAL GOVERNMENT UNIT OF PRIETO DIAZ, SORSOGON

WHEREAS, the Community-Based Monitoring (CBMS) was established and instituted on every city and municipality as an economic and social tool for the formulation and implementation of poverty alleviation and development programs that are specific, targeted and responsive to the basic needs of each sector of the community pursuant to Republic Act (RA) No. 11315 or the Community-Based Monitoring System Act;

WHEREAS, pursuant to PSA Board Resolution No. 04, Series of 2024, a simultaneous conduct of the 2024 Census of Population (POPCEN) and CBMS shall be conducted from July to September 2024 to update the mid-decade inventory of the population of the entire Philippines and updated the social registries of national government and program agencies and local government units for evidence-based project development and program implementation;

WHEREAS, RA 11315 provides that the cities and municipalities can maintain their CBMS database for local-level planning and program implementation, and the PSA shall receive and store all generated data gathered by the cities and municipalities to create a national CBMS databank; and

WHEREAS, the PSA, as the lead agency in the implementation of RA 11315 shall undertake measures to ensure the integrity and safety of the gathered information against unnecessary leakage and access by unauthorized persons;

WHEREAS, the Sangguniang Bayan is cognizant, among others, that;

1. Delivery of Data. The PSA shall turnover to the LGU the 2024 CBMS Data in electronic format, which may be through any of the mediums capable of encryption, such as but not limited to the use of an external storage device or electronic mail, provided that the LGU has provided the documents to the PSA, as stated in the agreement;
2. Authority to Transmit/Receive Data (on the Part of the LGU)
 - a. Hon. Romeo Domasian, Municipal Mayor
 - b. Roderick Domasig, MPDC, Data Protection Officer
 - c. Rinalyn Doctor, Compliance Officer for Privacy
 - d. Leif Garrett Domasig, Compliance Officer for Privacy
3. Data Sharing. The LGU may share the CBMS data in accordance with RA 11315 and RA 10173.

WHEREAS, on motion of Hon. Juan Ebid, duly seconded by Hon. Antonio Emano Jr. and Hon. Jo Madel Domalaon;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to authorize the Municipal Mayor, Hon. Romeo D. Domasian to enter into a Data Turnover Agreement with the Philippine Statistics Authority (PSA) represented by Mr. Claire Dennis S. Mapa, Undersecretary, National Statistician and Civil Registrar General, for the turnover of the 2024 Community-Based Monitoring System (CBMS) Data to the Local Government Unit of Prieto Diaz, Sorsogon"

FINALLY RESOLVED, to transmit this resolution to Municipal Mayor, Hon. Romeo D. Domasian; copy furnished Mr. Roderick Domasig, MPDC; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

DATA TURNOVER AGREEMENT

KNOW ALL MEN BY THESE PRESENTS:

This **Data Turnover Agreement (DTA)** is entered into this ____ day of _____ 2025, in the City/Municipality of Prieto Diaz by and between:

PHILIPPINE STATISTICS AUTHORITY, a government agency duly established under Republic Act (RA) No. 10625 or the "Philippine Statistical Act of 2013," with office address at PSA Complex, East Avenue, Quezon City 1101 Philippines, represented herein by its Undersecretary, National Statistician and Civil Registrar General, **CLAIRE DENNIS S. MAPA, PhD**, and hereinafter referred to as the "**PSA**,"

and

LOCAL GOVERNMENT OF PRIETO DIAZ a local government unit established pursuant to Public Law No. 940, with office address at Perlas, Prieto Diaz, Sorsogon represented herein by its City/Municipal Mayor, HON. ROMEO D. DOMASIAN, by virtue of Sanggunian /Bayan Resolution No. _____, and hereinafter referred to as "**LGU**,"

The **PSA** and **LGU** are hereinafter collectively referred to as "Parties,"

WITNESSETH, that:

WHEREAS, the Community-Based Monitoring System (CBMS) was established and instituted in every city and municipality as an economic and social tool for the formulation and implementation of poverty alleviation and development programs that are specific, targeted, and responsive to the basic needs of each sector of the community pursuant to Republic Act (RA) No. 11315 or the Community-Based Monitoring System Act;

WHEREAS, pursuant to PSA Board Resolution No. 04, Series of 2024, a simultaneous conduct of the 2024 Census of Population (POPCEN) and CBMS shall be conducted from July to September 2024 to update the mid-decade inventory of the population of the entire Philippines and update the social registries of national government agencies and local government units for evidence-based project development and program implementation;

WHEREAS, RA 11315 provides that the cities and municipalities can maintain their CBMS database for local-level planning and program implementation, and the PSA shall receive and store all aggregated data gathered by the cities and municipalities to create a national CBMS databank; and

WHEREAS, the PSA, as the lead agency in the implementation of RA 11315 shall undertake measures to ensure the integrity and safety of the gathered information against unnecessary leakage and access by unauthorized persons.

NOW THEREFORE, in consideration of the premises, and the mutual obligations herein, the Parties hereto, intending to be legally bound, hereby covenant and agree as follows:

1. **Delivery of Data.** The PSA shall turnover to the LGU the 2024 CBMS Data in electronic format, which may be through any of the mediums capable of encryption, such as but not limited to the use of an external storage device or electronic mail,

provided that the LGU has provided the following information/documents to the PSA:

- a. Designation Order of the Data Protection Officer (DPO), including the contact information (email address and contact number);
- b. Designation Order of the City/Municipal Statistician, including the contact information (email address and contact number);
- c. Certificate of availability of server or desktop computer for the CBMS database with antivirus and security features, including the specifications;
- d. Details of the location where the local CBMS database will be lodged;
- e. National Privacy Commission (NPC) Registration Certificate of the LGU or proof of registration or application for renewal (if certification is not yet available);
- f. Duly subscribed Attestation stating that the LGU has a Data Privacy Manual and the year of its latest available version;
- g. Plans and programs for managing and securing data; and
- h. Certification stating significant findings on the Privacy Impact Assessment conducted, if applicable.

Provided that, the LGU shall inform the PSA if a new DPO has been appointed or if there are changes in the plans and programs for managing and securing the data. The LGU shall submit the required documentation and contact information for this purpose.

2. **Authority to Transmit/Receive Data.** The following are authorized to transmit/receive data:

PSA	LGU
Claire Dennis S. Mapa, PhD Undersecretary National Statistician and Civil Registrar General	Hon. Romeo D. Domasian Municipal Mayor Municipality of Prieto Diaz Province of Sorsogon
Minerva Eloisa P. Esquivias (Assistant National Statistician) Officer-in-Charge Deputy National Statistician Censuses and Technical Coordination Office	Roderick D. Domasig Municipal Planning Department Coordinator/Data Protection Officer
Kristine Joy S. Briones Assistant National Statistician, Community-Based Statistics Service	Rinalyn A. Doctor Compliance Officer for Privacy IT Specialist/CBMS Supervisor
Engr. Cynthia L. Perdiz, CESO V Regional Director Regional Statistical Services Office – V	Leif Garrette L. Domasig Compliance Officer for Privacy Administrative Aide I
Ray F. Merjilla Statistical Operations and Coordination Division Regional Statistical Services Office-V	

Patricia Anne R. San Buenaventura Chief Statistical Specialist Community-Based Statistics Division	
Cross Doreh L. Lee Supervising Statistical Specialist Officer-in-Charge Provincial Statistical Office – Sorsogon	

3. **Error Corrections.** The Parties shall cooperate to correct any errors in the data that may materially impair its use or dependability. In this connection, either of the parties shall notify the other party and align the data within their possession. In the event of a discrepancy in data, the parties agree to settle the same amicably. No data sharing shall be done unless the discrepancies are resolved.
4. **Further processing and enhancements.** Either Party may process the data and generate statistics, provided that when such processing will or is expected to have an impact on the integrity of the data, the party who intends to modify the data shall notify the other party in writing. Any discrepancy in the processed data or generated statistics caused by the data modification or enhancement shall be resolved in the same manner under Item 3 of this DTA.
5. **Storage and Disposal.** The parties shall ensure that the CBMS data shall be stored in a secure location taking into consideration the provisions of RA 11315 and other related laws. Data shall be disposed of in accordance with the provisions of RA 11315 and other relevant issuances thereto.
6. **Application of Privacy Policy.** The parties agree to comply with the requirements of RA 10173, otherwise known as the "Data Privacy Act of 2012"; its Implementing Rules and Regulations, other relevant issuances of the National Privacy Commission, the provisions of RA 11315, and the security protocols issued by the PSA in the processing of CBMS data.

Notwithstanding the abovementioned provisions, the LGU shall ensure the security of the CBMS data after its successful turnover and shall hold the PSA harmless on any security incident or breach of data that is already under its possession.
7. **Data Sharing.** The LGU may share the CBMS data in accordance with RA 11315 and RA 10173 subject to Item No. 6. Any generated statistics of the LGU from the CBMS data shall be attributed solely to the LGU and not PSA. A Data Sharing Agreement shall be entered by the LGU upon sharing the data with a government agency, and a Memorandum of Agreement if the data is shared with a private entity. Moreover, a Non-Disclosure Agreement shall be signed upon data sharing.
8. **Release of Statistics.** The PSA shall not be held responsible and accountable for any information derived from the processing or manipulating of the CBMS data. The LGU undertakes to assume full responsibility for any generated information from the CBMS data.
9. **Liabilities.** The LGU shall be held solely liable for any damages suffered by any data subject caused by a data security incident or data breach in connection with the turned-over CBMS data.
10. **Modifications and Waivers.** This DTA may not be modified except by writing and signed by an authorized representative of both parties. A waiver by a party of its rights hereunder shall not be binding unless contained in writing and signed by an

authorized representative of the party waiving its rights. The non-enforcement or waiver of any provision on one (1) occasion shall not constitute a waiver of such provision on any other occasion unless expressly so agreed in writing.

11. **Assignment.** This DTA may not be assigned by a party hereto without the prior written consent of the other party, which consent shall not be unreasonably withheld or delayed.

IN WITNESS WHEREOF, the parties have executed and sealed this DTA on the date and place written above.

For:

For:

**PHILIPPINE STATISTICS AUTHORITY LOCAL GOVERNMENT OF <NAME>
(PSA)**

CLAIRE DENNIS S. MAPA, PhD
Undersecretary
National Statistician and Civil Registrar
General

Hon. Romeo D. Domasian
Municipal Mayor
Municipality Government of Prieto Diaz

Witnesses:

Minerva Eloisa P. Esquivias
(Assistant National Statistician)
Officer-in-Charge
Deputy National Statistician
Censuses and Technical Coordination Office

Roderick D. Domasig
Municipal Planning Department
Coordinator/Data Protection Officer
Municipality Government of Prieto Diaz

Engr. Cynthia L. Perdiz, CESO V
Regional Director
Regional Statistical Services Office – V

Rinalyn A. Doctor
Compliance Officer for Privacy
IT Specialist
Municipality Government of Prieto Diaz

Ray F. Merjilla
Statistical Operations and Coordination
Division- V
Regional Statistical Services Office-V

Cross Doreh L. Lee
Supervising Statistical Specialist
Officer-in-Charge
Provincial Statistical Office – Sorsogon

Republic of the Philippines)
_____) ss.

ACKNOWLEDGMENT

On the same date and at the same place written above, personally appeared before me, a Notary Public in and for _____, the following persons:

NAME	IDENTIFICATION DOCUMENT	DATE ISSUED	PLACE ISSUED
CLAIRE DENNIS S. MAPA, PhD			
ROMEO D. DOMASIAN	E05-99-017672	Sorsogon City	

known to me and to me known, to be the same persons who executed the foregoing document and acknowledged to me that the same is their own free act and voluntary deed.

This document consisting of five (5) pages including this page wherein the acknowledgment is written has been signed by the parties and their witnesses on each and every page thereof and relates to a Data Turnover Agreement.

IN WITNESS WHEREOF, I hereunto sign this document and affix my seal of office on the date and at the place aforementioned.

NOTARY PUBLIC

Doc. No: _____
Page No.: _____
Book No.: _____
Series of 2025.